

Transcript: Don Matthews GRAMA Request Interaction

Date: Thursday, February 13, 2025

Location: Layton City Hall and Police Department

Subject: GRAMA Request for Records from "Silent Audit" on February 3, 2025

Part 1: City Hall - Initial Visit

Don Matthews: Hello. Is Clinton in?

Receptionist: Excuse me?

Don Matthews: Is Clinton in?

Receptionist: Don't think he's here. He's in a meeting. Can I check real quick for him with the secretary?

Don Matthews: Yes, ma'am.

Receptionist: Just a second. All right. He is not here. We're not sure if he's going to be back today.

Don Matthews: I can give you a list. I got one. Well, then I need somebody else to look this up because this was sent to y'all's office. I did a public record request, I guess a GRAMA request.

Receptionist: For?

Don Matthews: You sent it to our office?

Don Matthews: No, I sent it to the police department, to the right person in the police department. They sent something over here and it's been hung up over here in y'all's office.

Receptionist: Okay, they called us yesterday morning and they said that the CD was ready for you. Did you go over there yesterday at all?

Don Matthews: No, I talked to them yesterday and they told me that it was over at legal on the 911 call that it still hadn't been signed off.

Receptionist: Let me make a phone call real quick. I thought they had it ready for you.

Don Matthews: And I was curious about it, and I wanted to speak to somebody here at this office about it, because... me being a member of the press, a journalist, I'm still the party involved so, you know, it was almost like that was... you know, they didn't want to turn that over because they said they were asking if I was a journalist like that would make a difference in whether or not I could get the stuff. It shouldn't.

Receptionist: It shouldn't. Yeah, it's... [makes phone call] Remind me your name.

Don Matthews: Don Matthews.

Receptionist: [on phone] Don Matthews. Hey, look. I'm sorry I called her right now. Where is Aspen at my chance? Thanks, [to Don] Hey, it's not that... [back to phone] Did you tell me that that CD wasn't for Don Matthews? He is. Okay, sure. Let me tell you. Don't call me back. Okay. Thanks, [to Don] She said she thinks it's ready. She's just going to double check.

Don Matthews: Okay.

Receptionist: She'll call me right back.

Don Matthews: Sounds good.

Receptionist: Yeah, and I'm not familiar with the case.

Don Matthews: I understand.

Receptionist: I knew you might be coming, so I know your name, but I don't know what the case is even about.

Don Matthews: It was just, it wasn't even really a big, I mean, it was interaction with the Layton police. I was standing on a sidewalk filming. I'm a journalist. I believe in the First Amendment. And the bank called the police on me for standing on the sidewalk.

Receptionist: The state grant, okay. The Zion's Bank?

Don Matthews: Right here on Fort Lane?

Receptionist: Yes, ma'am.

Don Matthews: I think so. Right there in that shopping center area.

Receptionist: Yeah.

Don Matthews: And I just, you know, I just wanted to see what was said when the officers went inside, you know, to the bank workers.

Receptionist: To the bank workers, correct.

Don Matthews: Just to make sure that everything, you know, is handled correctly like I figure it was. I make public record requests. I do a lot of public record requests in my line of work.

Receptionist: Yes, ma'am. Yeah. Well, Aspen's right here. She'll call me back. The price of everything is something, and I came and I spoke at City Hall on last Thursday about this.

Don Matthews: Uh-huh. \$10 per report is...

Receptionist: Yeah, we have to charge that same thing when people pick stuff up from us.

Don Matthews: Right. How long have y'all been doing it? Because that's outrageous.

Receptionist: As long as I've been here. I've been in this department for a little over two years.

Don Matthews: Okay. And I know... some cities charge even more than they charge by the page. We used to... it used to be ten dollars for a first amount and then extra if there were photos and stuff and then a couple years they revisit.

Don Matthews: So yeah, no, like I've done a lot of different public record requests around the country and ten dollars for a report is still like... The problem is, and this is where I brought up at City Council meeting the other night, is when it's already being paid for by taxpayer dollars, you know, it's a method of transparency, and I believe that charging ten dollars for a report discourages people from wanting to look into things, you know, to request things. Because, I mean, really, I mean, it's just \$10 per page.

Receptionist: The body cam price is... The \$10 per page is for the full... Or for the report. But generally, a report's not going to be but, you know, front and back page, you know? And that price is just standard, whether it's, you know, no redactions, one redaction. You know, it's just fixed.

Don Matthews: I would like to see that, and I told Clinton at the meeting that I would like to come up here or I'd like to speak with him about that, you know, because I think that that needs to be looked at. It needs to be adjusted because it's just way out of... I mean, the body cam price is normal. You know, \$30 for a body cam, that's normal. I think the 911 price is very expensive. I mean, a 30-second call, 30 bucks for a 911 call, come on.

Receptionist: It's 10 for anything that's paper, so full police report. If there are any photos or anything like that, that's included in the 10. But then any and all recordings, it's just that set 30. So if there's one 911 call or if there's 37 officers with body cam, it's all just that same price. It's just a set.

Don Matthews: So \$30 gets me the body cams and the 911 call.

Receptionist: Okay, awesome. It should give you any recordings.

Don Matthews: Okay, so just 30 bucks. Alright, I'll go do it.

Receptionist: Alright. And then they said they've got it ready for you if you just show your ID, you should be able to pick it up.

Don Matthews: Show my ID? Okay, well I, why do I need to show ID?

Receptionist: We always ask for ID if we're giving something out of this office. That's just, if you don't have it you can talk to my office.

Don Matthews: Yeah, I'll talk to him about it.

Receptionist: If we give something out, we always want to have ID, because we have to say who we gave it to, we have to have proof of who we gave it to.

Don Matthews: Right. Yeah, I, um, that's one thing I... the Fourth Amendment, I don't, unless I'm accused of committing a crime, ID. I mean, that's, I'm a stickler about that. I don't believe that I should have to produce ID just to get a record. That's a strong no for me.

Receptionist: Oh.

Don Matthews: A hard no for me.

Receptionist: Yeah, most people don't have a problem.

Don Matthews: I do. Yeah, it's, but it just gets into more constitutional issues. You know, you shouldn't have to produce ID to get a report. I mean, it's...

Receptionist: Right. Do you want me to give Clint your number to have him call you back? Do you want to call him and leave a voicemail?

Don Matthews: Yeah. Um. Is he going to be in today?

Receptionist: I'm not sure. I talked to his secretary. He's not going to be in today.

Don Matthews: Okay.

Receptionist: Yeah. I asked him when I got back because I barely got back from lunch when you got here.

Don Matthews: Yeah.

Receptionist: I'm not sure if he's going to be back or not. Sometimes he has to go down to those legislature meetings and things.

Don Matthews: Yes, ma'am. We'll hear from him by the end of the day if you'd like to leave.

Receptionist: Yeah. 385.

Don Matthews: 385. Oh, can I, oh, oh, did you want, you want me to, okay, I didn't know if you wanted... Yeah, I mean, that's what I was saying, I can leave a number, yes, ma'am, 385-350-3998.

Receptionist: And did you talk to him last week when you were at the meeting?

Don Matthews: I did. Yes, ma'am.

Receptionist: I will let him know you're here.

Don Matthews: Alright, and your name was?

Receptionist: My name's Linda.

Don Matthews: Alright Linda, I appreciate it. So I go to the police department across the street?

Receptionist: Yeah, straight across the street. Down the stairs.

Don Matthews: This is pretty cool right here. Alright, this is going to be interesting. I'm leaving City Hall right now, going right across the street to the police department. I've been told \$30 gets everything, but I've also been told that they want ID. I already said that's not happening. I don't ID for public records. Only ID if I committed a crime. So here we go.

Part 2: Police Department

Don Matthews: Hello. I'm here to get records. Don Matthews.

Police Department Staff: Do you have your ID on you?

Don Matthews: Um, I don't. I don't. I only do...

Police Department Staff: Huh? Okay. What's that? I guess you do have to have ID, so...

Don Matthews: You have to have ID. I've never had to show ID to get a public record.

Police Department Staff: You're a private. Okay. Um. Where's where's the law that I have to show ID to get this? I've made lots of public record requests.

Police Department Staff: You want to talk to our attorney's office where you just were?

Don Matthews: I was just over there and I spoke to her and she said that that's something that y'all have to take up.

Police Department Staff: So Mark Arrington, he's the prosecutor. Who is? So he said that you come over and talk. He just said that? Why didn't they, why didn't he stop me before I'd... I mean it's snowing outside, they know I was coming over here and they let me walk over here and, and just to tell... I only ID if I've committed a crime. That's literally the only time that I identify is if I've committed a crime.

Police Department Staff: Okay, is there... You did send us over to the legal department earlier.

Don Matthews: That's crazy. Alright, well I need to speak, I guess I'll speak to him and... I'd like to speak with somebody over here, you know, supervisor over here. Is there somebody over here before I go all the way back over there?

Police Department Staff: Do you want to talk to the sergeant or to the rep?

Don Matthews: Either. Yeah. And then I'll take it up with legal if I have to take it up with legal. But, yeah, just because of the weather, so I'm not walking back and forth, back and forth. So I've made lots of public record requests.

Police Supervisor: Okay.

Don Matthews: And I... Never have to. The only time I show ID is if I've committed a crime. I believe in the Fourth Amendment. I'm a constitutional rights activist. And I only show an ID.

Police Supervisor: So our standard business practice is anytime somebody requests a record, we request ID so that we know who we're providing the record to. I know that that's been explained to you. I called over and talked to prosecutor Arrington on this and he said that if you were refusing to provide your ID or you didn't have it to refer you back to him and you guys can discuss that. So that's what you'll need to speak with him about.

Don Matthews: All right. And you said, I don't know why they didn't stop me before I came across the street. Because the lady knew that, you know, I told her the same thing that I told you all. I mean, they could have stopped me right there. But it's snowing and they just let me go all the way over here.

Police Supervisor: Yeah, I can't speak on behalf of that.

Don Matthews: Yeah. Okay. So if you want to just slide that back through, I'll just hold on to it here.

Police Staff: All right. And it's \$30 for that?

Police Staff: So \$30 for the CDs, and then it's \$10 for the report.

Don Matthews: Okay. And it's just one report? And what about the 9-

Police Staff: So, yep, this one's the 911 call, and then this one's the body cam footage.

Don Matthews: Okay. And which body cam?

Police Staff: Officer Rangasamy and Officer Courtney.

Don Matthews: Okay. Both of them are on there. Awesome. Awesome. And you said it's \$30 for all that?

Police Staff: \$40 for all that.

Don Matthews: Okay. Okay. Alright and let me get, let me write down this guy's name that I need to ask for.

Police Staff: Okay. First name is Mark, last name is Arrington. A-R-R-I-N-T-O-N.

Don Matthews: Alright. I appreciate it.

Part 3: Return to City Hall

Don Matthews: [to himself] So apparently they're into a little game playing. Let me walk all the way across the street in the snow. Never stopped me inside knowing that I wasn't going to show ID. And now I'm getting a little pissed.

Don Matthews: [to receptionist] I really wish you would have stopped me before going across the street. I need to speak to Mark Arrington.

Receptionist: Okay, Mark is at the courthouse, but he should be back like maybe five minutes if you want to wait.

Don Matthews: All right.

Receptionist: Or I can, I can step over if you want me to call you.

Don Matthews: No, I mean, they said they just talked to him and they said walk back across there. Sounds like he was at the courthouse doing traffic stuff but he'll be back because there were three of them over there doing traffic court. The other two are back, he was just finishing up, okay, so he'll be back if you want to wait.

Don Matthews: Alright, yeah, they could have just told me to wait over there. They said go back across the street to the city hall. It's really... and I told him, I'll say it's snowing out there, you know, there's a lot of snow on the ground and...

Receptionist: Yeah, they've got the function right now they're shoveling. Okay, yeah, you're welcome to wait just a minute.

Receptionist: [to another person] Happy Valentine's Day tomorrow! Thanks Kelly, have a good weekend!

Don Matthews: I'm gonna try. How are you there?

Receptionist: Good, how you doing?

Don Matthews: Is there nobody else here that I can talk to?

Receptionist: I can see if Rob's available, but Mark's someone that you asked for.

Don Matthews: That's the one they told me to talk to. That's the one they said they just talked to, and they said he said he's there now and come talk to him.

Receptionist: He's been over at the courthouse since 1 o'clock.

Don Matthews: I know. I'm just saying that's what they told me at the police department. That's why they're like, yeah, go right now. And I just feel like I'm getting a run around. This is...

Receptionist: Yeah, see, and those guys in police, they didn't know that Mark had court today. We have court all day every Tuesday, and some days on Thursdays we have traffic. Not every week. They weren't aware that he was in court.

Don Matthews: It's just that I put this request in on the 3rd, and I shouldn't have to show... Here's the thing. At the end of the day... Y'all signed off on it knowing that I'm a member of the press. Because that was the question that was asked. That's why it was sent over here. And it was okayed. I'm not even identified in the report, but I am the person. You can see on the body cam. So what does it even matter getting my ID if I'm a member of the...

Receptionist: Isn't this like a dissemination log that they have to keep for BCI? We have to do the same thing if we give something out.

Don Matthews: But there's no privileged information. That's the thing. I don't have to ID because there's no privileged information. And I even looked up the laws on GRAMA, and there's no requirement on GRAMA.

Receptionist: It kind of leaves me between a rock and a hard place here. I'm a secretary. Mark is an attorney, so he's more familiar with what I do.

Don Matthews: I know, and I know, but this is just-

Receptionist: I just follow our policy. If I give something out, I ask for ID.

Don Matthews: I know, and I mean, I guess you haven't, you know, this hasn't been an issue in the past, but it's something that I insist on. I would like to get it resolved so I can just go over there and get it. I mean, I would prefer to not have to take the route of challenging the matter in court. But if I can't go pick it up without ID, then obviously that leaves me no other option. That conveys standing to me to go ahead and file the matter in court. So I shouldn't have to surrender my Fourth Amendment right just to get public records that are not privileged.

Receptionist: Yeah, he... I apologize for the wait. He really won't be here... as soon as he's done over there.

Don Matthews: Okay, well that's what I was saying. If there was anybody else that I could talk to in the meantime-

Receptionist: Well, Rob's here but he's not gonna be up to speed on it. You want me to see if he wants to come up?

Don Matthews: Yeah, I mean, I mean, I've been waiting long enough for these records. It's already... this has already come on the 11th day.

Receptionist: It's not your fault but I'm now wasting my day sitting here waiting to speak to somebody to get the clearance to pick up my stuff, you know, and there's still no telling how much longer I'm gonna have to wait. But I shouldn't have to just waste my day away just to... It shouldn't be that or surrender your ID, you know, your Fourth Amendment right. That just... I don't like that at all. And I feel like that's honestly what's going on is it's like, you know,

Receptionist: And I'm not saying it's you, but I mean, I feel like it's timing now for a little bit. Maybe he'll just decide to go get his ID and go get the reports. That's not going to happen.

Don Matthews: No, that's fine. Okay. I'm just-

Receptionist: Well, I'm just trying to sit here all day, and I know that...

Don Matthews: I'm not getting upset at you. I know you...

Receptionist: No, you're being very polite.

Don Matthews: Yes, ma'am. I appreciate that. Absolutely, yeah. I just, I still needed to go and do some stuff down at the library, but I want to make sure that my, you know, if I leave now without talking to him, then all the time that I've already sat here is for nothing.

Receptionist: Right. So, it's like...

Receptionist: He shouldn't be much longer. Okay. And we do close at five, so you're not going to want to leave... because if you went to the library then the building actually automatically locks.

Don Matthews: Okay, so all right, sounds good. There is a restroom and a water fountain right down the hall if you want to run out, but you're fine to just wait where you're okay.

Don Matthews: All right. I will go run out to my car real quickly. I mean, since he's not here, I think I'll make a phone call.

Receptionist: Yes, I'll grab a smoke. And I've got your number as well.

Don Matthews: Yes ma'am. Yeah, if he gets back in here before I get back in here then just give me a call. I'll be back in five minutes.

Receptionist: Alright, thank you.

Part 4: Phone Call from Car

Don Matthews: [on phone with friend] By all means, but I just figured this would be something that... Have you asked to see the... Have you Googled on your phone if they have to have your ID for your...

Friend on Phone: I don't care what their fucking policies are.

Don Matthews: Yeah. What is the state law on a GRAMA request?

Friend on Phone: State law on the GRAMA request says an ID is not required, but if it's certain departments, if it's private or privileged information, may require it. And what it did is it actually cited the Ogden Police Department and the Salt Lake City Police Department, but it just said certain.

Don Matthews: What's their policy say?

Friend on Phone: I don't know, but ChatGPT told me-

Don Matthews: What policies you can pull up on your phone?

Friend on Phone: Yeah, well, I don't, I honestly, Walt, I don't care what their policy says because they-

Don Matthews: Yeah, I don't care either.

Don Matthews: Yeah, they'll give it, yeah, I already told the woman, I said, if y'all don't give it to me, if y'all don't give me my request without showing ID, then I'm going to file suit because y'all convey standing to me because this is begging to be challenged.

Friend on Phone: They don't give a fuck.

Don Matthews: Yeah, I'm going to challenge it.

Friend on Phone: Yeah, that's what you're going to have to do.

Don Matthews: I'll do it. Because every GRAMA request that I've done comes back with Utah bullshit. They stretch the law in their favor, and they never give you anything you want. They say it's all private information that you can't ask for it. They're crooked here. I'm telling you, I'm glad you're here.

[Further conversation about wait times, frustrations with the process, and predictions that he'll need to return tomorrow]

Part 5: Meeting with Mark Arrington

Receptionist: He is back in the office. I'll book that one for you.

Don Matthews: All right. Thank you.

Mark Arrington: How you doing?

Don Matthews: Good.

Mark: Mark here. Your name is?

Don Matthews: Don Matthews.

Mark: Don Matthews? Glad to meet you. So, I've got an issue.

Don Matthews: Yes, sir. I always record my interaction with the government.

Mark: That's fine. I'm a journalist.

Don Matthews: Where are you a journalist for?

Mark: Well, I'm a freelance.

Don Matthews: You're a freelance? Freelance, yeah. Where are you published at?

Mark: Honestly, I prefer not to answer questions.

Don Matthews: Oh, okay. Just because...

Mark: I was just curious.

Don Matthews: No, no, no, I understand, I understand. No, different places. I've written articles for a few different...

Mark: Like KSL or KN RS or...

Don Matthews: Not around here.

Mark: Oh, okay. Yeah, yeah. So not just for the Tribune or anything like that?

Don Matthews: Right.

Mark: Oh, okay. I actually just came in from... Or I just moved here from out of state, but...

Don Matthews: You sound the south or the midwest?

Mark: I'm a little bit down south.

Don Matthews: Okay. A little bit down south, yes, sir. I'm from Oklahoma City.

Mark: Are you? Okay. Where are you all from?

Don Matthews: Well, I've lived in Georgia. I've lived in North Carolina.

Mark: Oh, okay. I've done a little bit of traveling to different places, but I'm trying to get this public records request from the Layton Police Department.

Don Matthews: Okay. What's the holdup?

Mark: The holdup is they want ID.

Don Matthews: Yeah, that's just... SOP, in other words, that's just in the normal course of business. When there's, and obviously police departments have records, everything from speeding tickets to homicide, sexual offenses, things like that, are records depending on what kind of privacy material, because we have victims, we have people that are involved that have a right to privacy.

Mark: And under GRAMA, if you studied GRAMA, I've studied GRAMA and looked at GRAMA. It doesn't require identification to get public records.

Don Matthews: Right. I want to pose a common sense question to you on this. I'm not identified in the report, but obviously you can look at the body cam and see that I'm the involved party for what I'm getting. This has already been sent over to the legal department and it's because they believe that I was press. Which I am, but I'm also the involved party in it. My name's not in the report, so I feel like...

Mark: We usually try and keep a public record... reports and documents, videos, everything that we release to people. It's just the normal course of business. We have what we feel is a reasonable fee. Different cities charge different fees.

Don Matthews: I had a problem with y'all's fee until she explained to me that the \$30 for the body cam or I thought the body cam fee was all right. What I don't think is alright is the \$10 for a police report and I actually came and I addressed City Council on Thursday night about that.

Mark: At the citizen forum?

Don Matthews: I did, yeah.

Mark: And we just, we found it easier. I guess some jurisdictions do it by the page, whether it's 10 cents or 25 cents. We just thought we'd just do it. The legal department set the fees for the PD. They decide that. But they just thought a flat fee, if it's a three-page report, it's \$10. If it's 30 pages, it's \$10, you know, kind of thing.

Don Matthews: Well, and that's the thing. A lot of police reports are a single page, and \$10 for a report I thought was outrageous. So I think city council does need to revisit their cost on the reports. If you've addressed it, they're going to address it. They'll talk about it. Because if the taxpayers are already, you know... taxpayer dollars are already going towards this. I'm a firm believer in transparency and I believe that charging an outrageous charge discourages people from wanting to request.

Mark: It does. That's why we try not to charge any more than we have to. And for like a video, as you can understand, if it's a video, if it's a body cam or something, we have to pay the cost of the drive, the stick that we give with that, or the CD, whatever it is.

Don Matthews: I wish they could have given it to me on a stick because, I mean, it's rare to have a lot of most computers don't even have a CD drive nowadays.

Mark: Did they give it to you on a CD drive?

Don Matthews: So they have two CDs over there. They have the 911 call and they have the body cameras.

Mark: How old is the case?

Don Matthews: Like brand new, like happened a week ago, and they're still doing CDs.

Mark: Yeah. Anything that we get from them, I think I have to check with my legal assistants, it's usually been a stick. We still have some discs, but they're for the older cases. If they can put it on a stick, that would be even better.

Don Matthews: I mean, and I can even... But it's... But my thing is, okay, I am a firm believer in the Fourth Amendment and I don't give my ID unless I've committed a crime. And to make a public record request to request this type of stuff, which y'all have already signed off on. There's no privileged information. That's why it's already come through this department.

Mark: Well, and I was going to tell you some information, depending on what you're asking for, will be redacted. For instance... we redact or we black out minors' information as far as dates of birth and full names.

Don Matthews: I certainly understand that. Yeah, of course. You got to.

Mark: We try and... As a normal course of business, we require an ID. If a defense attorney or an entity comes back and wants to know who have we released information to. You know, sometimes... We have some pretty high profile cases that we've dealt with in recent years. This is a city department. We handle misdemeanors.

Don Matthews: Sure.

Mark: But we get GRAMA requests for releases on homicides and sex offenses that have gone statewide or even nationally. We have people 10 years later that are requesting all of the files, photographs, and so forth. And even then, we have to go back and we redact that. We don't show anything that would be obscene or what we believe would violate privacy, again, of juveniles or even adults in a homicide or things like that. And again, we have to document who's requesting that. Is it a journalist? Is it just a private interested party?

Mark: I've done recent ones of people just from out of state. You ever heard of the Sloop matter? It's an older homicide case, and people are wanting to write or collect and write a book on different high profile cases throughout the country.

Don Matthews: Sure.

Mark: And they'll say, hey, can we have all your reports and photographs and everything? Well, yeah, it's 10, it's 15, it's 20 years old or whatever. Obviously, we keep that stuff for a very, very, very long time because there's always a chance on those kind of high profile cases, and we've got lengthy prison sentences that could always be appealed. So most of that stuff is always preserved. And again, as you know, GRAMA is designed to protect privacy of individuals, but to make information available to the public as well. But as far as getting back to what your original question was, as far as the ID, we just request an ID on everything. Again, if it's a traffic accident, request ID. If it's a homicide and we're redacting a bunch of stuff and releasing so forth, we just request an ID.

Don Matthews: And I just don't want to do it.

Mark: And it's a matter of documentation for us. And that's all I can tell you at this point.

Don Matthews: I can't do that, though. And the thing is, I've been gaslighted before. I've been retaliated on before. That's one of the reasons why I don't do this. I've seen it happen.

Mark: Yeah, and what I want to know, and I mean, you said you've lived in North Carolina, Georgia, and so forth. I think... with Layton City, knowing the department we have, knowing the city council you've met, knowing our city manager and so forth, we're sensitive to the Bill of Rights, and especially those like yourself who are First Amendment people that want to come and monitor and so forth. And we're good with that. We want to be transparent. We want to treat everybody equally. You're familiar with the 14th Amendment of the Equal Protection, Due Process. We want to treat everybody fairly. We make a point of not giving anybody any special treatment.

Don Matthews: I'm not asking for special treatment, Mark, but at the end of the day, I mean, first of all, it's already taken, it's going on the 11th day. It was sent over...

Mark: Your 11th day since you did a first request, is that what you're referring to?

Don Matthews: Okay. All right. So the police department sent it over here. They hit the brakes and they sent it over here because they had questions on whether I was a journalist, a member of the press. And so I told them, I said, well, I am, but I'm also the involved party. And so they sent it over here.

Mark: So you don't have a contract with any...

Don Matthews: No, but I don't have to.

Mark: No, no, I'm not saying that. I'm just asking. So you don't have a photographic ID. You don't have an ID that you're with the press or a journalist or anything like that.

Don Matthews: Anybody can print those off of computers. There is really no such thing as a press pass, per se. You know, anybody can be press. Well, if you're working for KSL and so forth, they all have press.

Mark: Well, and you know, I've got one. And a pass allows us to verify.

Don Matthews: I've got one. Because, you know, depending on the situation and so forth, we have things that will release to the press for publication that we're not going to give right away, perhaps. But do you know what the U.S. Supreme Court defines a member of the press as?

Mark: I haven't read one recently.

Don Matthews: So the United States Supreme Court recognizes a person of the press. They gather news content and disseminate news content out to the public. Do you have the case citation?

Mark: No, I don't. But that's just a standard state-by-state use.

Don Matthews: I haven't seen a state that hasn't used the same standard right there applied. And I know that that's very broadly defined, that really that means just about anybody could be a member of the press, but really anybody could be a member of the press, so long as they're gathering news content and disseminating news content out to the public.

Mark: Sure.

Don Matthews: I don't see the point in producing ID when, I mean, my name's not in the report anyways. Being that, you know, it came through this department to sign off because there were questions about me being a member of the press, clearly... There's, you know, the press, you know, stands a very high likelihood of disseminating the information out, you know. And so what would it matter?

Mark: I'm not sure. I'd have to look at what, what are you asking over this?

Don Matthews: I don't, well, no, I'm just saying, like a typical member of the press, if they're, if, If you have somebody with the news that's requesting something, they're requesting it, more than likely they're going to be disseminating that information out and other people will see it.

Mark: Yeah.

Don Matthews: So what does it matter, I mean, why? Why would it matter to get-

Mark: What is the information you're requesting that the police department release to you? Is it a specific report?

Don Matthews: So it's the report drawn up by the officer, the primary officer that showed up, and it's his body camera and another officer's body camera. There were three officers total that showed up. I don't need the third one because the second one actually, you know, was right there with the other guy the whole time. I just want those two body cams, the 911 call that was made.

Mark: Was anybody arrested?

Don Matthews: No.

Mark: Oh, okay. I was standing on a public sidewalk recording in public.

Mark: Oh, I see. Okay. So the focus of the police report and everything is actually you?

Don Matthews: Yeah.

Mark: Okay. Yeah. And did they?

Don Matthews: But they didn't identify me because I didn't commit any crimes. I didn't break any laws. What happened was I was standing on a public sidewalk recording. The bank thought that I looked suspicious just because I was standing on the sidewalk recording out in public. But photography in public is not a crime, particularly from a sidewalk.

Mark: Right there on the sidewalk.

Don Matthews: I never stepped foot on their property. I didn't answer any questions when the officer came up.

Mark: Okay, so they didn't get any ID or anything from you at the time?

Don Matthews: He didn't even ask me for ID.

Mark: Okay. Because he even told me, you are not committing any crime.

Mark: Yeah, okay. So I'm just wanting, you know, I just want it for my own record. I'm entitled to it. You know, there was no crime ever committed that day. It's just for the sake of transparency on the matter. You know, I shouldn't have to give up my Fourth Amendment right and stand a high likelihood of retaliation or gaslighting. I mean you could say that you all support or Layton's not going to do that.

Mark: So you didn't see anything that you felt was overbearing as far as the officers were concerned or anything? They didn't ask you for any ID or detain you or anything?

Don Matthews: No.

Mark: Oh, okay. No, they, they, but I wanted to hear, you know, basically the...

Don Matthews: So the first officer came up, he made contact with me for about five, ten minutes, and then two more officers pulled up, and they went inside. And they came out saying...

Mark: Oh, so the bank called and said, there's this guy out there.

Don Matthews: Correct.

Mark: Is that what they said?

Don Matthews: Yeah.

Mark: Okay. Yeah, yeah. Because they came out and they asked if I was recording the bank, and I didn't respond. I just stayed silent. Fifth Amendment, right? To remain silent. I mean, it's... I stress tested the First Amendment and the Fifth Amendment right there. You know, it's, it's, uh, rights are like muscles. I mean, you know, it's, I wasn't trying to do anything nefarious. I was just standing. I was, I was well within my rights.

Mark: Correct. And so I want to get my public records without having to surrender my Fourth Amendment.

Mark: Okay, but they're demanding an ID from you.

Don Matthews: No, they just told me, they just told me Don Matthews.

Mark: But, huh? You just introduced yourself as Dan Matthews.

Don Matthews: As Don Matthews. Don Matthews.

Mark: I apologize. Don Matthews. Well, okay. And, and, but I shouldn't have to show ID.

Mark: You didn't say, hey, I'm Don Matthews. I need a copy of this.

Don Matthews: I mean, I, I did.

Mark: Oh, okay. That's just one of many names that I go by, though.

Mark: Okay, so that's not your real name.

Don Matthews: Maybe it is and maybe it isn't.

Mark: Okay. Okay. Well you understand if you file, if you sign a government document under a false name, it very well could be a violation of the law, right? You understand that?

Don Matthews: So this is where I thought it was going. So it's more of an intimidation tactic to produce my ID and you just said it. You just said that if I sign a different name, okay, this is a scare tactic. I knew it.

Mark: No, it is. It really is right. And you just said that I could be violating tax forms that you give a false name or so forth. Obviously that's probably against the law.

Don Matthews: Right, right. But this is not a tax form. I'm not signing something.

Mark: I understand that, but I clarified that and said some documents.

Don Matthews: I electronically requested via email this stuff, and now they're wanting to make me identify myself, and I'm not doing it.

Mark: Well, the bottom line is, Dan, is that we're not going to...

Don Matthews: Don.

Mark: I keep apologizing. You look like a Dan from Georgia.

Don Matthews: Yeah, I mean...

Mark: You can call me Bob, you can call me, you know... Sam or whatever, right?

Don Matthews: Anything, yeah.

Mark: Anyway, Mark's my nickname, but that's what I go by.

Don Matthews: Yeah.

Mark: It's actually Mark Lee. I only get called Mark Lee when I get in trouble.

Don Matthews: Yeah. Alright Mark Lee, I need the documents over there at the police department.

Mark: And I'm not going to ask them to make an exception for you.

Don Matthews: But that's the thing. They told me while I was over there. They said, if Mark gives you permission, then we can do it. I knew I was getting the run around. I walked from here across the street after explaining to, is it Linda?

Mark: This is Linda.

Don Matthews: Linda, yeah. And went across the street in the snow, okay? Went across there, and as soon as I got across there, she asked for ID, and I didn't. Told her the same spill and she said, "Well, I just talked to Mark Arrington. You know, he's right. You can go right back across there to city hall." And I was like, "Why wouldn't she stop me before I walked all the way over there in the snow?" And she said, "Just talk to him if you walk back now. You know, you can get it worked out with him." And then, of course, it's after four so the records department's gone. So that means that they're closed already.

Mark: They closed... I believe they closed-

Linda: Oh, they do close at 5?

Mark: Yeah, they're still open.

Don Matthews: Okay. Yeah. But no, so apparently you have the... Did they send that over here, Linda, the report or anything? Because there's no crime.

Linda: No, I haven't seen anything on it at all.

Mark: Okay. All right, so they didn't write anything, you don't think?

Don Matthews: You know what? The officers wrote a report?

Mark: Yeah, no, basically... He gave me a card like I was the victim. You know, like they had the case number and all that on it. Told me I didn't commit any crimes. I mean, they didn't even ask me for...

Mark: Let me tell you, I think they'll write something just because there was a complaint or a suspicion from the bank.

Don Matthews: Right. So they're going to document that.

Mark: Well, then the officer said, he said that they had educated the bank people that I was well within my rights. Now, if I came onto their property, it would be a different conversation. So they probably wrote a paragraph and says, case closed.

Mark: Exactly. I know it is. Yeah. But I just want to get the case. Did they give you a copy of the case?

Don Matthews: Yeah, I've got the case number.

Mark: Do you need the case number?

Don Matthews: No, no. Did they give you a paper copy?

Don Matthews: No, that's in the, that's in the, so, so I requested the police report. I requested two body cams and I requested the 911 call that was made.

Mark: All right. Oh, is it? Okay. So can you please call over there and let them know that I can get it?

Mark: Yeah, I'm going to read the report real quick, okay? Can you come by tomorrow morning?

Don Matthews: I was hoping to get it while I was out here today and not having to...

Mark: I've got a 4:30 appointment, okay? And it's 4:32, they're waiting on me. I just need to read that and check with them and I'll sign off. If what you've told me is correct and so forth, I don't mind giving it.

Don Matthews: It is, it is.

Mark: At Don Matthews.

Don Matthews: Yeah, Don Matthews. No, it is correct. That's the thing. I've been waiting up here all afternoon. I got here after lunch, and now it's 4:30.

Mark: Guess what, Don Matthews? What you usually have to do is call a law firm and make an appointment.

Don Matthews: No, but I put in this record request 11 days ago, and so... and what we... we get... we get reports on criminal activity.

Mark: I know.

Don Matthews: Okay, and today was a court day. I've been in court off and on all day today.

Mark: I know, but I'm just doing what they told me to do.

Don Matthews: Right, they say come talk to the legal department. Normally if we don't have court, I'm here all day, 7 to 5. Today was a court day and usually done at 3, 3:30. We had a latecomer because of the snow come in for traffic court and so forth, and the judge, again helping citizens and so forth, we waited, right, twiddling our thumbs to assist our citizenry. Should have took care of it. They were running light in snow, frankly went to the wrong courtroom. They went to Farmington instead of up here. So we waited an extra half an hour for them to drive in the snow from Farmington up here. So anyway, that's just why or I would have talked to you two hours ago.

Don Matthews: I'd love to do that.

Mark: Well, and I spoke with, what's his name? Clinton?

Don Matthews: Clint?

Mark: The city attorney. Yeah. At the city council meeting. Yes. And I was, I need to get in touch with him about the fees of the police report. I think the rate for the body cams falls in line with the average standard price across the country. \$30 is a reasonable price. And, you know, so I was thinking that that was...

Don Matthews: I guess it's more reasonable knowing that it's all the body cams, you know, are grouped in under that price.

Mark: Let me just check on it. I'm obviously not going to do it in 25 minutes because I've got a meeting. I've got his number, Mark. She's got your number?

Linda: Yeah.

Mark: Okay. I'll look at it tomorrow morning. I'll be here at 8 o'clock. We come in at 8 instead of 7 on Fridays. I'll look at 8, give you a call before 9 o'clock.

Don Matthews: All right. Sounds good. All right. Thank you, Mark.

Mark: Mr. Matthews.

Don Matthews: Yes, sir.

Mark: Take care.

Don Matthews: Take care.

Mark: Yeah, the incident number is, let's see. Let me write that down. It's going to be L25 something. There it is. Let's see. Probably would have been a lot faster just to go to my email and find it. Yeah, let me get my email and find it. So, it's L25-03275. 03275.

Don Matthews: Correct.

Mark: All right. I'll look at it first thing in the morning, and I'll call you. Like I said, I'll call you before nine.

Don Matthews: All right. All right. Thank you, Mark.

Mark: Okay, be careful out there.

Don Matthews: Yes, sir.

[Don Matthews returns to his car and has another phone conversation, repeating much of his previous phone conversation about ID requirements and GRAMA requests]

Conclusion

This transcript documents Don Matthews' attempt to obtain records related to a police interaction that occurred on February 3, 2025, outside Zions Bank. Throughout the interaction, Matthews refuses to show ID based on Fourth Amendment principles, while city officials maintain it's standard procedure to request ID for all records requests. The matter is ultimately postponed until the following day, with city prosecutor Mark Arrington agreeing to review the case first thing in the morning.

Case reference number: L25-03275